

Court No. - 29

Case :- WRIT - C No. - 30451 of 2010

Petitioner :- Bhikari Lal Pal

Respondent :- U.P. Power Corporation Thru' Its Chairman, U.P.
Lkw. & Ors.

Petitioner Counsel :- K.K. Tripathi

Respondent Counsel :- Rajesh Tripathi

Hon'ble Sunil Ambwani,J.

Hon'ble Kashi Nath Pandey,J.

Heard learned Counsel for the petitioner. Sri Rajesh Tripathi accepts notices on behalf of the respondents.

It is alleged by the petitioner that the entire estimated amount for getting an electricity connection for operating the private tube well of 11KV (20HP), has been deposited by the petitioner with the U.P. Power Corporation, but the electric connection has not yet been provided, as the electric lines have to cross over the fields of one Ram Sewak, who has filed a civil suit, restraining the department from laying electricity lines over his fields.

Sri Rajesh Tripathi, learned counsel for the respondents states that under Clause 4.5(D) of the U.P. Electricity Supply Code, 2005 it is provided that if the person who has applied for electricity connection is not able to obtain no objection from the person from whose property the electricity lines have to be drawn, then in the alternative the electricity supply line shall be drawn from alternative route for which the applicant will have to deposit the additional estimated amount.

The petitioner may either obtain no objection from Ram Sewak, or deposit fresh estimated amount if the department proposes the supply through an alternative route.

The writ petition is **disposed of** with the direction that if the petitioner makes a fresh application for laying electricity supply line through alternative route alongwith the certified copy of this order, before the respondents, the matter will be decided within 4 weeks from the date, the application is made.

Order Date :- 27.5.2010

A. Verma